

judgment, not the default. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.) The application for relief “shall be accompanied by a copy of the answer or other pleading proposed to be filed ... otherwise the application shall not be granted.” (C.C.P. § 473(b).)

Relief must be granted even where the default resulted from inexcusable neglect by defendant's attorney, “so long as the attorney affidavit of fault shows the error was the fault of the attorney rather than the client.” (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.) An admission of fault that does not include an explanation of the reason for the fault may still be sufficient (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 442-443), but because the court may deny relief if it finds the default or dismissal “was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect” (*Jimenez*, 97 Cal.App.5th 50, 57), the explanation of the reasons “can serve as a causation testing device” in determining whether the neglect was caused by the client or the attorney. (*Martin Potts & Associates*, 244 Cal.App.4th 432, 442 [internal quotation marks omitted].)

When relief is granted based on an attorney affidavit of fault, sanctions of reasonable compensatory legal fees and cost” to the opposing counsel or parties are mandatory. [C.C.P. §473(b).] The court may also impose sanctions against the culpable attorney of monetary sanctions up to \$1,000 to opposing parties, \$1,000 to the State Bar Client Security Fund, or “other relief as is appropriate.” (C.C.P. §473(c)(1)(A), (B) and (C).)

Here, the court notes that in his affidavit, the Defendant’s attorney admits fault in failing to file a timely answer due to attempts to obtain better copies of what he described as illegible documents. Upon learning of the default, actions were taken to have the default set aside within less than two months. Defendant has attached a copy of the proposed answer and cross-complaint to the motion to set aside default.

Motion to Set Aside and Vacate Default GRANTED.

Defendants’ Answer and Cross-Complaint shall be deemed filed as of the date of this order.

Sanctions in the amount of \$250 shall be paid to Plaintiff within 30 days.

The Order to Show Cause re default judgment is vacated. A Case Management Conference is set for 10.07.26, 8:30 a.m.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507790	BUCKMAN VS VILLASENOR PEREZ	DEMURRER ON 1ST AMENDED COMPLAINT FOR FRAUD OF SHIRIN BUCKMAN BY AURORA VILLASENOR PEREZ

Tentative Ruling: No opposition filed by Plaintiff.

Request for Judicial Notice GRANTED. The court takes judicial notice of the following:

1. Plaintiff Shirin Buckman’s 2nd Amended Complaint in CVPS 2400148
2. Motion for Leave to file 3rd Amended Complaint in CVPS 2400148

3. Opposition of Defendant Aurora Perez to the Motion for Leave in CVPS 2400148
4. Notice of Ruling by Dept. 3 on Plaintiff's Motion for Leave to file 3rd Amended Complaint in CVPS 2400148

Demurrer to the 1st Amended Complaint GRANTED, with leave to amend. Plaintiff to file amended complaint in 10 days.

Case Management Conference continued to 7.21.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2507790	BUCKMAN VS VILLASENOR PEREZ	MOTION TO STRIKE 1ST AMENDED COMPLAINT FOR FRAUD OF SHIRIN BUCKMAN BY AURORA VILLASENOR PEREZ

Tentative Ruling: No opposition filed by Plaintiff.

Motion to Strike 1st Amended Complaint GRANTED, with leave to amend. Plaintiff to file amended complaint in 10 days.

Case Management Conference continued to 7.21.26.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2603197	GALVIN VS HOFFMAN	HEARING RE: ENTRY OF FOREIGN-COUNTRY MONEY JUDGMENT

Tentative Ruling: No tentative ruling. On court's own motion, hearing is taken off calendar. No documents submitted in support of the hearing, no proof of service on file.